

STATE OF NORTH CAROLINA

File No.
22CR357339-910

Wake County

Raleigh Seat of Court

In The General Court Of Justice
Superior Court Division

NOTE: Use AOC-CR-310 for DWI offense(s).

STATE VERSUS

Name Of Defendant

RACHEL AINSLEY BEAHN

ICMS Person Record No.

7937688

NOTE: Date Of Birth may be recorded on
AOC-CR-1000 (ICMS).

Race

White

Sex

Female

Attorney For State

MELANIE SHEKITA

☐ Def. Found
Not Indigent☐ Def. Waived
Attorney

Attorney For Defendant

JOEL HART MILES, Jr.

☐ Appointed
☒ RetainedCrt Rptr Initials
GM

G.S. 15A-1341, -1342, -1343, -1343.2, -1346

FINDINGS AND CONCLUSIONS

The defendant was found guilty/responsible, pursuant to ☒ plea (☐ pursuant to *Alford*) (☐ of no contest) ☐ trial by judge ☐ trial by jury, of

File No.(s)	Off.	Offense Description	Offense Date	G.S. No.	CL.	*Pun. CL.
22CR357339-910		CONTRIBUTING DELINQUENCY OF A MINOR	11/26/2022	14-316.1	Misdemeanor Class 1	

*NOTE: Enter punishment class if different from underlying offense class (punishment class represents a status or enhancement).

The Court has determined, pursuant to G.S. 15A-1340.20, the number of prior convictions to be 0. LEVEL: I

The Court:

1. Findings Not Required for Disposed Offense(s)

ORDER

The Court, having considered evidence, arguments of counsel and statement of defendant, Orders that the above offenses, if more than one, be consolidated for judgment and the defendant be imprisoned for a term of 45 Days in the custody of the: (check only one)

Wake Sheriff

(sentences greater than 90 days for which a facility is not otherwise specified above).

☒ This sentence shall run at the expiration of sentence imposed in file number 22CR357339-910/53.The defendant shall be given credit for 0 days spent in confinement prior to the date of this Judgment as a result of this/these charge(s), to be applied toward the ☐ sentence imposed above. ☐ imprisonment required for special probation set forth in this Judgment.

SUSPENSION OF SENTENCE

Subject to the conditions set out below, the execution of this sentence is suspended and the defendant is placed on supervised probation for 24 months.

- ☒ 1. The Court finds that a longer period of probation is necessary than that which is specified in G.S. 15A-1343.2(d).
- ☐ 2. The Court finds that it is NOT appropriate to delegate to the Division of Community Supervision and Reentry the authority to impose any of the requirements in G.S. 15A-1343.2(e) for community punishment or G.S. 15A-1343.2(f) for intermediate punishment.
- ☐ 3. This period of probation shall begin _____ in the case below.

File No.	Offense	County	Court	Date
----------	---------	--------	-------	------

- ☒ 4. The defendant shall comply with the conditions set forth in file number 22CR357339-910/53.
- ☐ 5. The defendant shall provide a DNA sample pursuant to G.S. 15A-266.4. (AOC-CR-319 required)

MONETARY CONDITIONS

The defendant shall pay to the Clerk of Superior Court the "Total Amount Due" shown below, plus the probation supervision fee if placed on supervised probation above, pursuant to a schedule ☐ determined by the probation officer. ☐ set out by the court as follows: _____

Costs	Fine	Restitution	Attorney's Fees	Comm Serv Fee	EHA Fee	SBM Fee	Appt Fee/Misc	Total Amount Due
\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00		0

*See attached "Restitution Worksheet, Notice And Order (Initial Sentencing)" AOC-CR-611, which is incorporated by reference.

- ☐ The Court finds just cause to waive costs, as ordered on the attached ☐ AOC-CR-618. ☐ Other: _____.
- ☐ Upon payment of the "Total Amount Due," the probation officer may transfer the defendant to unsupervised probation.

Material opposite unmarked squares is to be disregarded as surplusage.

REGULAR CONDITIONS OF PROBATION - G.S. 15A-1343(b)

NOTE: Any probationary judgment may be extended pursuant to G.S. 15A-1342. The defendant shall: (1) Commit no criminal offense in any jurisdiction. (2) Possess no firearm, explosive device, or other deadly weapon listed in G.S. 14-269. (3) Remain gainfully and suitably employed or faithfully pursue a course of study or vocational training, that will equip the defendant for suitable employment, and abide by all rules of the institution. (4) Satisfy child support and family obligations, as required by the Court. (5) Submit to the taking of digitized photographs, including photographs of the defendant's face, scars, marks, and tattoos, to be included in the defendant's records.

If the defendant is on supervised probation, the defendant shall also: (6) Not abscond, by willfully avoiding supervision or by willfully making the defendant's whereabouts unknown to the supervising probation officer. (7) Remain within the jurisdiction of the Court unless granted written permission to leave by the Court or the probation officer. (8) Report as directed by the Court or the probation officer to the officer at reasonable times and places and in a reasonable manner, permit the officer to visit at reasonable times, answer all reasonable inquiries by the officer and obtain prior approval from the officer for, and notify the officer of, any change in address or employment. (9) Notify the probation officer if the defendant fails to obtain or retain satisfactory employment. (10) Submit at reasonable times to warrantless searches by a probation officer of the defendant's person and of the defendant's vehicle and premises while the defendant is present, for purposes directly related to the probation supervision, but the defendant may not be required to submit to any other search that would otherwise be unlawful. (11) Submit to warrantless searches by a law enforcement officer of the defendant's person and of the defendant's vehicle, upon a reasonable suspicion that the defendant is engaged in criminal activity or is in possession of a firearm, explosive device, or other deadly weapon listed in G.S. 14-269 without written permission of the court. (12) Not use, possess, or control any illegal drug or controlled substance unless it has been prescribed for the defendant by a licensed physician and is in the original container with the prescription number affixed on it; not knowingly associate with any known or previously convicted users, possessors, or sellers of any such illegal drugs or controlled substances; and not knowingly be present at or frequent any place where such illegal drugs or controlled substances are sold, kept, or used. (13) Supply a breath, urine, or blood specimen for analysis of the possible presence of prohibited drugs or alcohol when instructed by the defendant's probation officer for purposes directly related to the probation supervision. If the results of the analysis are positive, the probationer may be required to reimburse the Division of Community Supervision and Reentry of the Department of Adult Correction for the actual costs of drug or alcohol screening and testing.

OTHER CONDITIONS OF PROBATION AND OTHER PUNISHMENTS

The defendant shall:

SAME TERMS AND CONDITIONS AS SET FORTH IN COUNT 53

COMMUNITY AND INTERMEDIATE PROBATION CONDITIONS - G.S. 15A-1343(a1) [Confinement]

In addition to complying with the regular and any special conditions of probation set forth in the "Judgment Suspending Sentence" entered in the above case(s), the defendant shall also comply with the following conditions of probation, which may be imposed for any community or intermediate punishment.

- ☐ Submit to the following period(s) of confinement in the custody of the ☐ Sheriff of this County. ☐ _____ (other local confinement facility). ☐ and pay jail fees. The defendant shall report in a sober condition to serve the term(s) indicated below.

NOTE: Periods of confinement imposed here must be for two-day or three-day consecutive periods, only, for no more than six days in a single month, and in no more than three separate months during the period of probation. To impose special probation under G.S. 15A-1351, see INTERMEDIATE PUNISHMENTS, below.

Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days
Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days
Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days

Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days
Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days
Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days

Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days
Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days
Date	Hour	☐ AM ☐ PM	for ☐ 2 days ☐ 3 days

INTERMEDIATE PUNISHMENTS [Special Probation]

In addition to complying with the regular and any special, community, or intermediate conditions of probation set forth in the "Judgment Suspending Sentence" or herein for the above case(s), the defendant shall also comply with the following intermediate punishment(s) under G.S. 15A-1340.11(6).

- ☐ **Special Probation - G.S. 15A-1351**

For the defendant's active sentence as a condition of special probation, the defendant shall comply with these additional regular conditions of probation:

(1) Obey the rules and regulations of the Division of Prisons of the Department of Adult Correction and, if applicable, the Division of Juvenile Justice of the Department of Public Safety, governing the conduct of inmates while imprisoned. (2) Report to a probation officer in the State of North Carolina within seventy-two (72) hours of the defendant's discharge from the active term of imprisonment.

- ☐ A. Serve an active term of _____ in the custody of the ☐ NC DAC. ☐ Sheriff of this County. ☐ Other: _____.

(NOTE: Special probation may not be served in DAC for (i) a noncontinuous period or (ii) a misdemeanor. For a defendant under 18, any period of special probation must be served in the Division of Juvenile Justice of the Department of Public Safety.)

- ☐ B. The defendant shall report in a sober condition to begin serving his/her term on:

Day	Date	Hour
-----	------	------

and shall remain in custody until

Day	Date	Hour
-----	------	------

- ☐ C. The defendant shall again report in a sober condition to continue serving this term on the same day of the week for the next consecutive weeks, and shall remain in custody during the same hours each week until completion of the active term ordered.

- ☐ D. This term shall be served at the direction of the probation officer within ☐ days ☐ months of this judgment.

- ☐ E. Pay jail fees. ☐ F. Work release is recommended. ☐ G. Substance abuse treatment is recommended.

- ☐ H. Other:

INTERMEDIATE CONDITIONS OF PROBATION - G.S. 15A-1343(b4)

If subject to intermediate punishment, the defendant shall, in addition to the terms and conditions imposed above, comply with the following intermediate conditions of probation.

(1) If required by the defendant's probation officer, perform community service under the supervision of the Division of Community Supervision and Reentry, and pay the fee required by G.S. 143B-1483, but no fee shall be due if the Court imposed community service as a special condition of probation and assessed the fee in this judgment or any judgment for an offense adjudicated in the same term of court. (2) Not use, possess, or control alcohol. (3) Remain within the defendant's county of residence unless granted written permission to leave by the court or the defendant's probation officer. (4) Participate in any evaluation, counseling, treatment, or educational program as directed by the probation officer, keeping all appointments by abiding by the rules, regulations, and direction of each program.

Material opposite unmarked squares is to be disregarded as surplusage.

ORDER OF COMMITMENT/APEAL ENTRIES

- ☐ 1. It is ORDERED that the Clerk deliver **two** certified copies of this Judgment and Commitment to the sheriff or other qualified officer and that the officer cause the defendant to be delivered with these copies to the custody of the agency named above to serve the sentence imposed or until the defendant shall have complied with the conditions of release pending appeal.
- ☐ 2. The defendant gives notice of appeal from the judgment of the District Court to the Superior Court.
- ☐ 3. The current pretrial release order is modified as follows: _____.
- ☐ 4. The defendant gives notice of appeal from the judgment of the trial court to the Appellate Division. Appeal entries and any conditions of post-conviction release are set forth on form AOC-CR-350.

SIGNATURE OF JUDGE

Date
02/23/2024

Name Of Presiding Judge (type or print)
REBECCA W HOLT

Signature Of Presiding Judge

Rebecca W. Holt

CERTIFICATION

2/23/2024 4:53:14 PM

I certify that this Judgment and the attachment(s) marked below is a true and complete copy of the original which is on file in this case.

- | | |
|--|---|
| ☐ 1. Appellate Entries (AOC-CR-350) | ☐ 5. Judicial Findings And Order For Sex Offenders - Suspended Sentence (AOC-CR-615, Side Two) |
| ☐ 2. Judgment Suspending Sentence (AOC-CR-603D, Page Two)
(additional conditions of probation) | ☐ 6. Convicted Sex Offender Permanent No Contact Order (AOC-CR-620) |
| ☐ 3. Restitution Worksheet, Notice And Order (Initial Sentencing) (AOC-CR-611) | ☐ 7. Additional File No.(s) And Offense(s) (AOC-CR-626) |
| ☐ 4. Judicial Findings As To Required DNA Sample (AOC-CR-319) | ☐ 8. Other: _____. |

Date

Date Certified Copies Delivered To Sheriff

Signature Of Clerk

- ☐ Deputy CSC ☐ Asst. CSC
☐ Clerk Of Superior Court

SEAL

Material opposite unmarked squares is to be disregarded as surplusage.